

24AHCV00082 24AHCV00082

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Motion: MOTION FOR SUMMARY JUDGMENT BY DEFENDANT
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Case Number: 24AHCV00082 Hearing Date: June 26, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JAMES
CURRY,

Plaintiff(s),

vs.

STATE
OF CALIFORNIA, ACTING BY AND THROUGH THE DEPARTMENT OF TRANSPORTATION,

Defendant(s).

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CASE NO.: 24AHCV00082

[TENTATIVE]

ORDER RE: MOTION FOR SUMMARY JUDGMENT BY DEFENDANT

Dept.

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8:30

a.m.

June 26,

2026

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I.

INTRODUCTION

On January 16, 2024, plaintiff James Curry ("Plaintiff") filed this action against the People of State of California, acting by and through the Department of Transportation ("Caltrans") for dangerous condition of public property. Plaintiff claims personal injury and property damage after his vehicle struck a pothole on westbound I-210 freeway between Santa Anita Avenue and Baldwin Avenue on March 15, 2023, at or around midnight.

Caltrans filed a motion for summary

judgment on February 23, 2026, arguing that Plaintiff's Complaint failed because: (1) no dangerous condition of public property existed/exists, (2) Caltrans had no notice of the alleged condition, and (3) Caltrans has weather immunity.

On June 8, 2026, Plaintiff filed an opposition brief.

Caltrans filed a reply brief on June 15, 2026.

II.

LEGAL

STANDARD

"A moving defendant now has two means by which to shift the burden of proof under subdivision (o)(2) of section 437c to the plaintiff to produce evidence creating a triable issue of fact. The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon.... Alternatively, the defendant may utilize the tried and true technique of negating ('disproving') an essential element of the plaintiff's cause of action." (Brantley v. Pisaro (1996) 42 Cal.App.4th 1591, 1598; see also Code Civ. Proc., § 437c, subd. (p)(2).) "[T]he defendant must make an affirmative showing that the plaintiff will be unable to prove its case by any means." (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1439.) A moving defendant must show that plaintiff cannot reasonably obtain evidence to prove a cause of action, which is more than simply arguing that there is an absence of evidence. (Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891 [refusal to answer and objection at deposition insufficient to shift burden]; Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 855; Certain Underwriters at Lloyd's of London v. Superior Court (1997) 56 Cal.App.4th 952, 960.)

"Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of

material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

III.

EVIDENTIARY

OBJECTIONS

The Court declines to rule on

Caltrans’s objections to Plaintiff’s evidence submitted in opposition to its summary judgment motion. As discussed further below, the Court concludes that Caltrans did not meet its moving burden to make a prima facie showing of Plaintiff’s inability to prove his claim. Therefore, Plaintiff’s opposition papers are irrelevant. (Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384, 387 [summary judgment motion must be denied where moving party fails to shift burden even if the opposition is weak].)

IV.

DISCUSSION

A. Whether Plaintiff Has Evidence of
a Dangerous Condition

A “dangerous condition” is a “condition of property that creates a substantial (as opposed to a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830(a).)

Caltrans argues that Plaintiff’s lone cause of action for dangerous condition of public property fails because Plaintiff cannot describe the alleged pothole with sufficient specificity and, therefore, cannot prove that it exists. (Motion, p. 8.) Caltrans relies on Plaintiff’s deposition testimony and claims that “there is no evidence of the exact location” of the pothole because when Plaintiff was asked if he remembered where the pothole was, he stated that it was in “[t]he middle of the freeway” and confirmed that it was “somewhere between Santa Anita and Baldwin” on the westbound I-210. (Motion, p. 8; Def.’s Ex. D, 37:6-15.) Plaintiff also testified that he was driving in the second lane from the right and “as far as

the spot of the hole, it's in that lane." (Ex. D, 39:17-18.) Plaintiff additionally stated that there are "a couple miles" in between the Santa Anita exit and Baldwin Exit and that he estimated that the pothole was "kind of almost in the middle" between them. (Id., 39:21-40:9.) Also, while Caltrans argues that Plaintiff has no ability to describe the physical characteristics of the pothole because he testified that he did not see the pothole, the cited portion of the transcript supporting this material fact includes Plaintiff's testimony that while he could not describe it exactly, "you can still see [the holes] to this day." (Ex. D, 37:25.)

Caltrans does not meet its moving burden to show that Plaintiff cannot reasonably obtain evidence of the pothole. Caltrans cites to no legal authority supporting the conclusion that Plaintiff's testimony is insufficient evidence of a dangerous condition as a matter of law. Caltrans only cites case law which stands for the unremarkable proposition that an accident is not in and of itself evidence that public property was in a dangerous condition at the time of the injury. (Motion, p. 8.)

Accordingly, the motion for summary judgment is DENIED on this ground.

B. Whether Plaintiff Can Prove Caltrans Had Actual or Constructive Notice

Caltrans argues that Plaintiff cannot prove that it had actual or constructive notice of the pothole, as required by Government Code § 835. "To establish actual notice, there must be some evidence that the employees had knowledge of the particular dangerous condition in question; it is not enough to show that the [public entity's] employees had a general knowledge that the condition can sometimes occur. To establish constructive notice, the plaintiff must prove the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character." (Restivo v. City of Petaluma (2025) 11 Cal.App.5th 267, 275; Gov. Code § 835.2, subd. (b).)

Caltrans argues that Plaintiff cannot prove it had actual notice of the alleged pothole because Plaintiff cannot identify the pothole. This argument is unpersuasive because, as stated above, the Court rejects Caltrans' suggestion that the pothole is unidentifiable. Plaintiff

has testified as to the existence of a sufficiently large pothole to cause his vehicle to spin out in the number two lane westbound on the 210 midway between the Santa Anita and Baldwin exits. That is sufficient to require Caltrans to make a prima facie showing that it had no actual notice of the pothole's existence.

Caltrans also argues that Plaintiff cannot establish constructive notice of the alleged pothole because Plaintiff "testified that he believed the fresh rain created the alleged pothole." (Motion, p. 9.) The cited testimony does not support this claim because Plaintiff was asked whether he had seen potholes in that general area before. In response, Plaintiff stated:

Not like I was explaining to you. Like, I never seen anything that was significant. Like, our freeways are bad, but I never noticed that pothole like that before. I believe that it was the rain and the, you know, water in the hole. Which maybe I just somehow missed it before, but I never seen anything like that before.

(Ex. D, 45:6-12.) Parties moving for summary judgment do not shift the burden of proof as to an issue where the interrogatories and deposition excerpts lack requests or questions aimed specifically at the issues, or were not requests for all facts on the subject. (Scheiding v. Dinwiddie Constr. Co. (1999) 69 Cal.App.4th 64, 83; Cassady v. Morgan, Lewis & Bockius LLP (2006) 145 Cal.App.4th 220, 244.) Furthermore, Caltrans cites to no authority suggesting that visibility of the purported condition at the time of the incident is related to a finding of constructive notice.

C. Whether Caltrans Has Weather Immunity

Last, Caltrans argues that Plaintiff cannot prevail due to Government Code § 831 which articulates the "weather immunity defense." Section 831 states, in relevant part: "Neither a public entity nor a public employee is liable for an injury caused by the effect on the use of streets and highways of weather conditions as such." Caltrans solely relies on Plaintiff's deposition testimony and claims Plaintiff stated that the alleged pothole was caused by rain. However, as discussed above, this is an inaccurate description of his testimony. Accordingly, Caltrans has not shown that the "weather immunity" defense applies.

V.

CONCLUSION

In light of the foregoing, Caltrans's motion for summary judgment is DENIED.

Dated
this 26th
day of June 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.